AIA DOCUMENT A102 - STANDARD FORM OF AGREEMENT BETWEEN OWNER AND CONTRACTOR (EXCERPT)

Construction Agreement - Ashby Mill Lofts

Between Ashby Mill Owner LLC (Owner) and Blue Ridge Builders Inc. (Contractor)

1. Notice to Proceed dated June 5, 2023. The Contractor shall begin the work on the date stated in the Notice to Proceed.

2. Contract sum: $21,900,000, being the guaranteed maximum price for the work described in the Contract Documents.

3. The Contract Documents include the drawings and specifications issued by Hollins and Reade Architects dated July 20, 2023, and the approved Part 2 application.

4. This Agreement is entered into as of June 5, 2023.

Article 3 - Time

5. The Contractor shall achieve substantial completion within the time stated in the Notice to Proceed, subject to adjustments by change order.

6. The Owner shall pay the Contractor the contract sum in current funds for the Contractor's performance of the Contract.

Article 5 - Payments

7. Progress payments shall be made monthly on certified applications for payment, less retainage of ten percent until substantial completion.

8. The Contractor shall carry out all work affecting historic features in accordance with the approved Part 2 application and its conditions.

Article 7 - Changes

9. Changes in the work may be made only by written change order signed by the Owner, the Contractor and the Architect.

10. The Contractor shall maintain general liability, builder's risk and workers' compensation insurance as required by the Contract Documents.

Article 3 - Time

11. The Contractor shall achieve substantial completion within the time stated in the Notice to Proceed, subject to adjustments by change order.

12. The Owner shall pay the Contractor the contract sum in current funds for the Contractor's performance of the Contract.

Article 5 - Payments

13. Progress payments shall be made monthly on certified applications for payment, less retainage of ten percent until substantial completion.

14. The Contractor shall carry out all work affecting historic features in accordance with the approved Part 2 application and its conditions.

Article 7 - Changes

15. Changes in the work may be made only by written change order signed by the Owner, the Contractor and the Architect.

16. The Contractor shall maintain general liability, builder's risk and workers' compensation insurance as required by the Contract Documents.

Article 3 - Time

17. The Contractor shall achieve substantial completion within the time stated in the Notice to Proceed, subject to adjustments by change order.

18. The Owner shall pay the Contractor the contract sum in current funds for the Contractor's performance of the Contract.

Article 5 - Payments

19. Progress payments shall be made monthly on certified applications for payment, less retainage of ten percent until substantial completion.

20. The Contractor shall carry out all work affecting historic features in accordance with the approved Part 2 application and its conditions.

Article 7 - Changes

21. Changes in the work may be made only by written change order signed by the Owner, the Contractor and the Architect.

22. The Contractor shall maintain general liability, builder's risk and workers' compensation insurance as required by the Contract Documents.

Article 3 - Time

23. The Contractor shall achieve substantial completion within the time stated in the Notice to Proceed, subject to adjustments by change order.

24. The Owner shall pay the Contractor the contract sum in current funds for the Contractor's performance of the Contract.

Article 5 - Payments

25. Progress payments shall be made monthly on certified applications for payment, less retainage of ten percent until substantial completion.

26. The Contractor shall carry out all work affecting historic features in accordance with the approved Part 2 application and its conditions.

Article 7 - Changes

27. Changes in the work may be made only by written change order signed by the Owner, the Contractor and the Architect.

28. The Contractor shall maintain general liability, builder's risk and workers' compensation insurance as required by the Contract Documents.

Article 3 - Time

29. The Contractor shall achieve substantial completion within the time stated in the Notice to Proceed, subject to adjustments by change order.

30. The Owner shall pay the Contractor the contract sum in current funds for the Contractor's performance of the Contract.

Article 5 - Payments

31. Progress payments shall be made monthly on certified applications for payment, less retainage of ten percent until substantial completion.

32. The Contractor shall carry out all work affecting historic features in accordance with the approved Part 2 application and its conditions.

Exhibit D - Change order log

Change order	Date	Amount
CO-1 Structural repairs, floors 2 and 3	02/12/2024	$315,000
CO-2 window installation	05/06/2024	$60,000
CO-3 Masonry repairs at river elevation	10/14/2024	$265,000
Summary: CO-1 $315,000; CO-2 $60,000; CO-3 $265,000		**$640,000**
Original contract sum		$21,900,000
Adjusted contract sum after change orders		**$22,540,000**

All change orders were signed by the Owner, the Contractor and the Architect.

Article 8 - Insurance

40. The Contractor shall maintain general liability, builder's risk and workers' compensation insurance as required by the Contract Documents.

41. Changes in the work may be made only by written change order signed by the Owner, the Contractor and the Architect.

Article 6 - Historic work

42. The Contractor shall carry out all work affecting historic features in accordance with the approved Part 2 application and its conditions.

43. Progress payments shall be made monthly on certified applications for payment, less retainage of ten percent until substantial completion.

Article 4 - Contract sum

44. The Owner shall pay the Contractor the contract sum in current funds for the Contractor's performance of the Contract.

45. The Contractor shall achieve substantial completion within the time stated in the Notice to Proceed, subject to adjustments by change order.

Article 8 - Insurance

46. The Contractor shall maintain general liability, builder's risk and workers' compensation insurance as required by the Contract Documents.

47. Changes in the work may be made only by written change order signed by the Owner, the Contractor and the Architect.

Article 6 - Historic work

48. The Contractor shall carry out all work affecting historic features in accordance with the approved Part 2 application and its conditions.

49. Progress payments shall be made monthly on certified applications for payment, less retainage of ten percent until substantial completion.

Article 4 - Contract sum

50. The Owner shall pay the Contractor the contract sum in current funds for the Contractor's performance of the Contract.

51. The Contractor shall achieve substantial completion within the time stated in the Notice to Proceed, subject to adjustments by change order.